

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 688

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO MOTOR VEHICLES; REPEALING SECTION 49-967, IDAHO CODE, RELATING TO AIR BAGS AND AIR BAG SYSTEMS; AMENDING CHAPTER 9, TITLE 49, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 49-967, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING AIR BAGS AND AIR BAG SYSTEMS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section [49-967](#), Idaho Code, be, and the same is hereby repealed.

SECTION 2. That Chapter 9, Title 49, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 49-967, Idaho Code, and to read as follows:

49-967. AIR BAGS AND AIR BAG SYSTEMS -- PROHIBITED ACTS -- PENALTY. (1) It shall be unlawful for any person to knowingly or intentionally:

(a) Manufacture, import, distribute, offer for sale, sell, or lease, or install or reinstall into any motor vehicle, a counterfeit automobile supplemental restraint system, a nonfunctional air bag, or other object that replaces an automobile supplemental restraining component that fails to meet the federal motor vehicle safety standards as provided in 49 CFR 571.208, for the make, model, and year of the motor vehicle;

(b) Offer for sale, sell, lease, or otherwise transfer ownership of a motor vehicle with a counterfeit automobile supplemental restraint system, a nonfunctional air bag, or other object that replaces an automobile supplemental restraining component that fails to meet the federal motor vehicle safety standards as provided in 49 CFR 571.208, for the make, model, and year of the motor vehicle; or

(c) Install or reinstall any object, component, part, or device as part of an automobile supplemental restraint system that causes a motor vehicle's diagnostic system to fail to warn the motor vehicle operator that an air bag is not installed, a nonfunctional air bag is installed, or a counterfeit automobile supplemental restraint system component is installed that does not comply with 49 CFR 571.208, for the make, model, and year of the motor vehicle. A violation of this paragraph shall not occur until the installation work is complete and one of the following conditions occurs:

(i) The motor vehicle is returned to the operator; or

(ii) The title to the motor vehicle is transferred.

(2) Any person convicted of a violation of the provisions of this section shall be guilty of a misdemeanor.

(3) As used in this section:

1 (a) "Air bag" means an inflatable restraint device for occupants of a
 2 motor vehicle that is part of an automobile supplemental restraint sys-
 3 tem.

4 (b) "Automobile supplemental restraint system" means a passive in-
 5 flatable crash protection system that a vehicle manufacturer designs
 6 to protect occupants of a motor vehicle in conjunction with a seat belt
 7 assembly, as defined in 49 CFR 571.209, that has one (1) or more air bags
 8 and all components required to ensure that each air bag;

9 (i) Operates as designed in a motor vehicle crash; and

10 (ii) Meets federal motor vehicle safety standards for the spe-
 11 cific make, model, and year of manufacture of the vehicle in which
 12 the air bag is installed.

13 (c) "Counterfeit automobile supplemental restraint system component"
 14 means a replacement component, including an air bag, that displays a
 15 trademark that is identical to or substantially similar to the manufac-
 16 turer's or supplier's trademark without authorization from a manufac-
 17 turer or a person that supplies parts to the manufacturer.

18 (d) (i) "Nonfunctional air bag" means a replacement air bag that:

19 1. Was previously deployed or damaged;

20 2. Has a fault that a motor vehicle's diagnostic system de-
 21 tects once the air bag is installed;

22 3. May not be sold or leased pursuant to 49 U.S.C. 30120(j);
 23 or

24 4. Includes a counterfeit automobile supplemental re-
 25 straint system component or other part or object that is
 26 installed for the purpose of misleading a motor vehicle
 27 owner or operator into believing that a functional air bag is
 28 installed.

29 (ii) "Nonfunctional air bag" does not include a deployed air bag
 30 that has not been repaired or an air bag that is installed in a mo-
 31 tor vehicle when:

32 1. Such vehicle has been declared a total loss or is other-
 33 wise a totaled vehicle;

34 2. The owner was issued a salvage title certificate in Idaho
 35 or a similar title from another state; or

36 3. The air bag is visible in its deployed condition.

37 SECTION 3. An emergency existing therefor, which emergency is hereby
 38 declared to exist, this act shall be in full force and effect on and after
 39 July 1, 2026.